

COMPLAINT NUMBER: 2026-8001701

WARRANT NUMBER: GS1112479

PROSECUTOR: Jennifer M Walsh

DEFENDANT: Kimberly Whitworth

VICTIM: HomeGoods

STATE OF TENNESSEE, COUNTY OF DAVIDSON

AFFIDAVIT

Theft of Merchandise- \$1,000 or less

39-14-146*8

Personally appeared before me, the undersigned **[Select one]** ☒ X Commissioner ☐ Metropolitan General Sessions Judge, the prosecutor named above and made oath in due form of law that **[Select one]** ☐ he ☒ X she **[Select one]** ☐ personally observed ☒ X has probable cause to believe that the defendant named above on 05/11/2026 in Davidson County, did knowingly and with the intent to deprive a merchant of the stated price of merchandise **[Select one]** ☐ ☒ X conceal the merchandise ☐ remove, take possession of, or cause the removal of any merchandise ☐ alter, remove, or transfer any price marking or any other marking that aides in determining value affixed to the merchandise ☐ transfer merchandise from one container to another ☐ cause the cash register or other sales recording device to reflect less than the merchant's stated price ☐ remove, destroy, deactivate, or otherwise evade any component of an anti-shoplifting device or inventory control device to commit or facilitate a theft ☐ use any artifice, instrument, container, device or other article to commit or facilitate a theft ☐ activate or interfere with a fire alarm system to commit or facilitate a theft and the merchandise had a value of: **[Select one]** ☒ X \$1,000 or less ☐ more than \$1,000 but less than \$2,500 ☐ \$2,500 or more but less than \$10,000 ☐ \$10,000 or more but less than \$60,000 ☐ \$60,000 or more but less than \$250,000 ☐ \$250,000 or more. *The probable cause is as follows:*

On May 11th, 2026, Terri Newsom and Kimberly Whitworth entered the HomeGoods in Bellevue One shopping center. HomeGoods loss prevention personnel provided detectives with security footage of this incident.

Video shows Ms. Newsom enter the location and select a cart before heading further into the store, and Ms. Whitworth coming into the store behind her. The two women made their way through several areas of the store, however, are seen spending the bulk of their time in the kitchen accessories. The two women are seen selecting various kitchen items to include can openers, utensils, and a coffee maker amongst other items, a total value of \$371.82, and placing it all into the cart. Video captures Ms. Newsom and Ms. Whitworth go down to where the cutting boards are, and begin to conceal the merchandise from the cart into Ms. Newsom's purse. The two women then headed to the front and exited without making any attempt to pay for the concealed merchandise.

Detectives with the Organized Retail Crime Section are familiar with both Ms. Whitworth and Ms. Newsom and recognized them upon seeing the video. Detectives compared the provided video footage to Ms. Whitworth and Ms. Newsom's respective most recent Tennessee driver's licenses and DCSO booking photos.

Prosecutor: Jennifer M Walsh 100005833

ARREST WARRANT

Information on oath having been made, that on the day and year aforesaid, and in the County aforesaid, the offense

of Theft of Merchandise- \$1,000 or less A MISD, as aforesaid, has been committed and charging the defendant thereof, you are therefore commanded, in the name of the State, forthwith to arrest and bring the defendant before a judge of the Court of General Sessions of Davidson County, Tennessee, to answer the above charge.

Sworn to and subscribed before me on 05/19/2026 13:13:20 .

Steve Holzapfel

Judge of the Metropolitan General Sessions Court/Commissioner

If the defendant's charge is dismissed, a no true bill is returned by a grand jury, the defendant is arrested and released without being charged with an offense, or the court enters a nolle prosequi in the defendant's case, the defendant is entitled, upon petition by the defendant to the court having jurisdiction over the action, to the removal and destruction of all public records relating to the case without cost to the defendant.

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